

SOFTWARE DEVELOPMENT & PRODUCT SERVICES AGREEMENT

Fillable client agreement

Agreement No.		Effective Date	
Jurisdiction		Currency	

SERVICE PROVIDER

Legal Entity / Proprietor	
Registered Address	
Email	

CLIENT

Company / Individual	
Authorized Representative	
Job Title	
Registered Address	
Email	
Phone	

This Agreement governs software development and product services performed by CHUCHU AI STUDIO. Specific project scope, deliverables, schedule and pricing are defined in the applicable Statement of Work (SOW).

GENERAL TERMS

1. Purpose of the Agreement

The Client engages CHUCHU AI STUDIO ("Studio") to design, develop, test, deploy, and/or provide related software development services for the project described in the applicable Project Proposal / Statement of Work ("SOW"). Services may include prototypes and proof-of-concepts, mobile MVPs, production-ready mobile applications, AI-powered applications, custom software products, web-to-mobile conversions, integrations, UI/UX development, deployment, and related technical services. Each project shall have an approved SOW defining the specific scope, deliverables, price, estimated schedule, supported platforms, and any special requirements.

2. Project Scope

The Studio shall provide only the services and deliverables specifically identified in the approved SOW. Anything not expressly included in the approved scope is considered out of scope. The SOW should identify, where applicable, project objectives, included and excluded features, supported platforms, UI/UX requirements, backend/API requirements, AI functionality and third-party integrations, testing and deployment requirements, source-code handover requirements, documentation, estimated schedule, project fee, and payment milestones.

3. Project Fee

The total project fee shall be stated in the SOW. Unless otherwise agreed in writing, third-party expenses are not included in the project fee. These may include Apple Developer membership, Google Play registration, hosting, cloud services, domains, API usage, AI services, databases, email/SMS services, paid SDKs, third-party software licenses, payment-processing charges, and similar external costs. Such services should, whenever practical, be registered directly under accounts owned and controlled by the Client.

4. Payment Terms

Unless a different payment schedule is specified in the SOW, the standard payment schedule shall be: 30% Project Commencement Deposit, due upon signing and before production development begins; 30% Development Milestone, due when the principal product functionality reaches the agreed alpha/development milestone; 25% Client Testing / Beta Milestone, due when the project is delivered for client acceptance testing, TestFlight, equivalent beta distribution, or agreed staging environment; and 15% Final Acceptance & Handover, due before final source-code handover, production deployment, or transfer of final project assets, as applicable. The initial 30% payment reserves development capacity and authorizes the Studio to begin work. Invoices are payable within the period stated on the invoice. The Studio may pause work on overdue accounts until payment is received.

5. Client Responsibilities

The Client shall provide information and decisions reasonably necessary for development, including requirements, branding, content, credentials, technical documentation, feedback, approvals, and access to relevant systems. The Client is responsible for ensuring that materials supplied to the Studio may lawfully be used in the project. Delays caused by missing Client information, approvals, access, payments, or decisions may extend the delivery schedule.

6. Development & Approval Process

Development may be divided into modules, milestones, builds, or phases. The Studio may provide development builds, prototypes, TestFlight builds, staging deployments, screenshots, demonstrations, or other materials for review. The Client shall provide acceptance or consolidated feedback within the review period specified in the SOW. Approval of a milestone authorizes the Studio to proceed to the next stage.

7. Revisions & Change Requests

Reasonable corrections required to make an agreed feature conform to the approved specification are included within the applicable development phase. Requests that materially alter the approved scope, including new features, major redesigns, additional platforms, integrations, workflows, or functionality, constitute a Change Request. The Studio shall advise the Client of any additional fee and/or schedule impact before undertaking material out-of-scope work. No material Change Request shall be chargeable without Client approval.

GENERAL TERMS

8. Intellectual Property & Ownership

Until all amounts due under the project have been paid, all project-specific deliverables remain under the Studio's control and are provided to the Client for review and testing only. Upon receipt of full and final payment, the Client shall receive ownership of the final project-specific source code and deliverables expressly identified for transfer in the SOW, subject to the exclusions below. The Studio retains ownership of its pre-existing intellectual property, reusable tools, generic components, development techniques, templates, internal utilities, know-how, libraries, workflows, and other materials not created exclusively for the Client. Third-party and open-source components remain subject to their respective licenses. Where Studio-owned reusable components are incorporated into a Client product, the Client receives the rights reasonably necessary to use those components as part of the delivered product, but does not acquire ownership of the Studio's underlying reusable technology unless expressly agreed in writing.

9. Source-Code Handover

Following full payment, the Studio shall provide the agreed source-code handover. For production projects, the preferred arrangement is a Client-owned private source-control repository, such as a GitHub organization or repository controlled by the Client. The handover may include complete project source code, project configuration files, included application assets, dependency information, build instructions, relevant technical documentation, version/release information, repository history where applicable, and a final archived source-code copy where agreed. The Client shall be provided sufficient access to independently retain and continue development of the delivered product. The Studio is not required to transfer its personal credentials, private signing keys, unrelated source code, internal development systems, or credentials belonging to third parties.

10. Client-Owned Production Accounts

Whenever practical, production accounts should be owned directly by the Client. Examples include Apple Developer / App Store Connect, Google Play Console, GitHub organization/repository, cloud infrastructure, domain registration, database services, API/provider accounts, analytics platforms, and payment-processing accounts. The Client shall normally pay provider fees directly. The Client may grant the Studio the minimum access reasonably necessary to perform development and deployment work. This arrangement ensures the Client can independently access and operate its product after handover.

11. Application Store Deployment

If deployment is included in the SOW, the Studio may assist with preparing and submitting the application to Apple App Store, Google Play, or another distribution platform. The Studio cannot guarantee approval because store acceptance is determined solely by the applicable platform operator. If a submission is rejected for an issue within the agreed implementation, the Studio shall make reasonable efforts to address the issue. Changes arising from new requirements, Client business practices, third-party services, or material scope changes may require additional work.

12. Acceptance

The Client shall review final deliverables and report material defects or deviations from the agreed scope within the acceptance period specified in the SOW. If no acceptance period is specified, the default acceptance period shall be seven (7) business days following final delivery for acceptance testing. The Studio shall correct verified defects that prevent an agreed feature from functioning substantially as specified. New features and subjective design changes outside the approved specification are not defects.

13. Post-Delivery Warranty

Unless otherwise stated in the SOW, the Studio provides a 30-day limited bug-fix warranty beginning upon final acceptance or production delivery, whichever occurs first. The warranty covers reproducible software defects in functionality developed by the Studio and included in the approved scope. It does not include new features, redesigns, changes requested after acceptance, third-party outages or API changes, operating-system changes occurring after delivery, misuse, modifications by other developers, infrastructure failures outside the Studio's control, or problems caused by Client-controlled systems.

14. Maintenance & Ongoing Development

After the warranty period, the Client may engage the Studio under a separate maintenance agreement, monthly retainer, support package, or new SOW. Ongoing services may include bug fixes, operating-system compatibility updates, monitoring, feature development, UI/UX improvements, App Store/Google Play updates, backend maintenance, AI/API integration maintenance, and technical support. There is no obligation for the Client to purchase ongoing maintenance, and there is no obligation for the Studio to provide unlimited free support after the warranty period.

GENERAL TERMS

15. Confidentiality

Each Party shall protect confidential business, technical, commercial, customer, product, financial, and proprietary information received from the other Party. Confidential information shall not be disclosed to third parties except where required to perform the project, authorized by the other Party, or required by law. Confidentiality obligations survive termination of this Agreement.

16. Data, Privacy & Security

Where the project processes personal information, the Parties shall identify their respective responsibilities in the SOW or applicable data-processing documentation. The Client is responsible for determining the legal requirements applicable to its business, customers, data collection, privacy policy, regulatory obligations, and intended use of the product. The Studio shall implement agreed technical requirements but does not act as the Client's legal, medical, financial, or regulatory adviser.

17. AI & Third-Party Services

Where a product uses artificial intelligence, APIs, external models, cloud services, or other third-party technology, the Client acknowledges that those services may have independent terms, usage limits, pricing, availability, output limitations, and privacy practices. The Studio does not guarantee the continued availability, pricing, accuracy, or behavior of third-party services. Material modifications required because of a third-party provider's future changes may constitute additional work.

18. Portfolio & Publicity

Unless the Client requests confidentiality in writing, the Studio may identify the completed project in its portfolio after the product becomes public. The Studio shall not disclose confidential source code, credentials, private business information, unpublished product plans, customer data, or other protected information. For confidential or pre-release projects, no public disclosure shall be made without Client permission.

19. Independent Contractor

The Studio performs services as an independent contractor. Nothing in this Agreement creates an employment relationship, partnership, joint venture, fiduciary relationship, or agency between the Parties unless separately agreed in writing.

20. Limitation of Liability

To the maximum extent permitted by applicable law, neither Party shall be liable to the other for indirect, incidental, special, punitive, or consequential damages arising from the project, including loss of anticipated profits, except where such limitation is prohibited by law. Except for obligations that cannot legally be limited, the Studio's aggregate liability arising from a project shall not exceed the fees actually paid to the Studio for the specific project giving rise to the claim.

21. No Guarantee of Commercial Results

The Studio does not guarantee downloads, sales, revenue, investment, market adoption, profitability, App Store ranking, user retention, or other commercial outcomes. The Studio's obligation is to provide the agreed professional software-development services and deliverables.

22. Suspension & Termination

Either Party may terminate the project for a material breach that remains uncured after reasonable written notice. The Client may also terminate for convenience upon written notice. In that event, amounts already paid are applied against work completed, committed development capacity, approved third-party expenses, and other amounts properly due up to termination. The Studio shall provide paid-for completed deliverables in their then-current condition where reasonably practicable. The Studio may suspend work for overdue invoices, unlawful requests, material non-cooperation, security concerns, or serious breach of this Agreement.

23. Force Majeure

Neither Party shall be responsible for delays caused by circumstances reasonably outside its control, including natural disasters, widespread internet or infrastructure failures, governmental action, war, major platform outages, or comparable events.

GENERAL TERMS

24. Governing Law & Dispute Resolution

This Agreement shall be governed by the laws of the jurisdiction stated in the SOW or signature section. Before commencing formal proceedings, the Parties shall first attempt in good faith to resolve disputes through direct negotiation. Any mediation, arbitration, venue, or court provisions required for a particular Client or jurisdiction may be specified in the SOW.

25. Entire Agreement

This Agreement, together with each signed SOW, approved Change Request, and incorporated attachment, constitutes the agreement between the Parties regarding the applicable project and supersedes prior discussions concerning the same subject matter. Changes to this Agreement must be agreed in writing by authorized representatives of both Parties. Electronic signatures and counterparts may be used to the extent permitted by applicable law.

SIGNATURES

Complete after the Agreement and SOW are approved

CHUCHU AI STUDIO

Name	
Title / Company	
Email	
Signature / typed e-signature	
Date	

CLIENT

Name	
Title / Company	
Email	
Signature / typed e-signature	
Date	

SCHEDULE A - PROJECT STATEMENT OF WORK

Complete for each client project

Project Name	
Project Type	
Platforms	
Project Objective	
Included Features	
Excluded / Future Features	
Deliverables	
Estimated Start Date	
Estimated Delivery Date	
Total Project Fee	
Payment Currency	
30% Commencement Deposit	
30% Development Milestone	
25% Beta / Acceptance Testing	
15% Final Acceptance / Handover	

SCHEDULE A - PROJECT STATEMENT OF WORK

Additional Terms